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Will California join other states, Feds in banning TikTok on government devices?

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President Biden signed a law banning nearly 4 million federal employees from having TikTok on their government phones, over national security concerns. This week, New Jersey and Ohio joined at least 20 other states in restricting access to TikTok, amid fears that the Chinese government could use the app to spy on Americans.

Will California jump on the TikTok ban bandwagon?

While the state often leads on the policy frontier, not so much on regulating social media companies, many of which make their home in California.

It's a live issue in the Legislature now that bills were introduced Wednesday to ban TikTok and other "high-risk" apps on state-issued cell phones and devices. State Sen. Bill Dodd, a Napa Democrat who authored one of the bills, said he wants to prevent cybersecurity threats — of which there have been a few recently.

Dodd's Senate Bill 74 is still in its early phases, but if passed, it would apply to apps owned or controlled by a "country of concern" — a list that would be maintained by the governor's office. TikTok, the short-form video hosting platform, is owned by ByteDance, in which the Chinese government owns a stake.

Dodd: "Prohibiting these apps on state phones and other devices is a commonsense way to prevent exposure of our sensitive material and the possible tracking or data breaches. Clearly, there are bad actors out there, and we can't afford to let them in."

Assemblymember Kate Sanchez, a first-term Murrieta Republican who introduced her own version in Assembly Bill 227, focused more on the Chinese threat. She said the introduction of Dodd's bill shows it is a bipartisan issue.

Sanchez: "At a time when the Chinese Communist Party is attempting to undermine America, it is completely unacceptable to continue to allow them to access sensitive data through TikTok's ByteDance. We need to cut off the flow of sensitive data, protect our state's cybersecurity, and act before it's too late."

Dodd's bill, supported by the Consumer Federation of California, wouldn't prevent state employees from using TikTok on their personal phones — which means Californians may not entirely miss out on some of those light-hearted, informative and sometimes snarky interactions with lawmakers.

Sen. Tom Umberg, a Democrat from Garden Grove and chairperson of the Senate Judiciary Committee, said while the bill is a good idea, it needs full review:

Umberg: "It is something we should do with a great deal of clarity and great deal of due diligence because when government starts to ban modes of communication that can be a problem."

Assemblymember Jesse Gabriel, a Democrat from Woodland Hills and chairperson of the Assembly Committee on Privacy and Consumer Protection, didn't commit to supporting the bill, but said the committee would discuss the best way to address "privacy, cybersecurity, and national security concerns with TikTok and other social media applications."

In the face of industry opposition, the recent track record of social media bills is mixed.

Last year, lawmakers killed a nationally-watched bill to allow the attorney general or district attorneys to bring civil

lawsuits against social media companies for products or features they know will addict kids. The tech industry strongly opposed the bill. Gov. Gavin Newsom did sign into law a bill designed to protect the privacy of children online. Industry groups said the legislation was too broad and objected to state-by-state regulations.

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